

**CHAPTER i.**

An Act to confirm a Provisional Order under the
Private Legislation Procedure (Scotland) Act
1936 relating to Rutherglen Burgh.

A.D. 1937.

[9th December 1937.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by the
Secretary of State under the provisions of the Private
Legislation Procedure (Scotland) Act 1936 and it is
requisite that the said Order should be confirmed by
Parliament :

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule
hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Rutherglen Burgh
Order Confirmation Act 1937.

Short title.

A.D. 1937.

SCHEDULE.

RUTHERGLEN BURGH.

Provisional Order to extend the municipal and police boundaries of the royal burgh of Rutherglen in the county of Lanark and for other purposes.

WHEREAS the burgh of Rutherglen (hereinafter called "the burgh") was created a royal burgh during the reign of King David the First of Scotland and the magistrates and town council thereof have from time immemorial exercised jurisdiction of a judicial and administrative character within the whole of the burgh :

And whereas the royalty boundaries of the burgh are more extensive than the boundaries of the burgh for municipal and police purposes :

19 & 20
Geo. 5. c. 25. And whereas the burgh is a large burgh within the meaning of the Local Government (Scotland) Act 1929 lying within the county of Lanark and its provost magistrates and councillors (hereinafter called the "town council") are the local authority charged with the administration and management of the burgh for municipal and police purposes :

And whereas the lands available for the erection of dwelling houses within the boundaries of the burgh as existing for municipal and police purposes are limited and it is necessary for houses to be erected outwith the said boundaries for the accommodation of the inhabitants of the burgh and additional lands will be required for such purposes :

And whereas the demand for additional houses arising from and in consequence of an increased population the necessity of relieving overcrowding which prevails in parts of the burgh and the clearance of slum property cannot be met within the existing burgh and it is expedient that such houses should be built within the burgh boundaries :

And whereas it is expedient that the town council should make provision of parks playing fields recreation grounds and open spaces for the health and benefit of the inhabitants of the burgh and whereas there is not sufficient land within the existing burgh boundaries suitable for these purposes : A.D. 1937.
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And whereas for the purposes of providing housing accommodation in terms of the Housing (Scotland) Acts 1925 to 1935 the town council have made orders for the compulsory purchase of certain areas of land within the county of Lanark immediately adjoining the municipal and police boundary of the burgh which areas of land are the area described in the schedule to this Order :

And whereas it is expedient and would be for the public and local advantage that the existing boundaries of the burgh as existing for municipal and police purposes should be extended and should include the said area as by this Order provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the town council and all other powers and jurisdictions applicable within the existing burgh should as by this Order provided be extended to and applicable within the burgh as extended by this Order and to the inhabitants thereof :

And whereas it is expedient that subject to the provisions of this Order the said area should be separated and disjoined for the purposes of this Order from the county of Lanark and that subject to the provisions of the Local Government (Scotland) Act 1929 and of this Order all matters of administration and management and all jurisdictions powers functions and authorities within the said area should devolve on and be vested in the town council :

And whereas it is expedient that the said area should be added to the VI Crosshill Ward of the burgh as in this Order provided :

And whereas it is expedient to confer such other powers on the town council and to make such other provisions in relation to the government and administration of the affairs of the burgh as are contained in this Order :

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—

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows :—

Short title
and
citations.

1. This Order may be cited for all purposes as the Rutherglen Burgh Order 1937 and the Rutherglen Burgh Order 1906 and this Order may be cited together as the Rutherglen Burgh Orders 1906 and 1937.

Commence-
ment of
Order.

2. This Order shall (except as otherwise provided in this Order) commence and have effect on and from the sixteenth day of May one thousand nine hundred and thirty-eight which date is hereinafter referred to as “ the commencement of this Order.”

Interpre-
tation.

3. In this Order unless there be something in the context repugnant to such construction the following expressions shall have the meanings hereinafter assigned to them respectively (that is to say) :—

“ The burgh ” or “ the existing burgh ” mean the burgh of Rutherglen within the limits and boundaries thereof existing for municipal and police purposes immediately previous to the commencement of this Order;

“ The burgh as extended ” means the existing burgh as extended by this Order;

“ The county ” means the county of Lanark;

“ The County Council ” means the County Council of the county;

“ The town council ” means the provost magistrates and councillors of the burgh;

“ The district council ” means the district council of the eighth district of the county;

“ The dean of guild court ” means the dean of guild court of the burgh;

“ The district annexed ” means the area described in the schedule to this Order;

“ The magistrates ” means the magistrates of the burgh and includes the provost and bailies;

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“Valuation Acts” means the Lands Valuation (Scotland) Act 1854 and any Acts amending and extending the same;

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17 & 18 Vict.
c. 91.

“Valuation roll” means the valuation roll made up in accordance with the Valuation Acts.

4. The municipal and police boundaries of the burgh shall be and are hereby extended to and shall include and comprehend the existing burgh and the district annexed provided that the description of boundaries contained in the schedule to this Order shall be subject to the rules of construction laid down in the Representation of the People Acts.

Limits of
burgh.

5. A map of the burgh as extended of which twelve copies have been signed by Matthew George Fisher counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within one month after the passing of the Act confirming this Order be deposited as follows (that is to say) one copy in the office of the Clerk of the Parliaments House of Lords one copy in the Committee and Private Bill Office of the House of Commons one copy in the Scottish Office Whitehall London one copy with the town clerk of the burgh one copy with the sheriff clerk of the county in his office at Glasgow one copy with the Board of Trade one copy with the Commissioners of Customs and Excise one copy with the Ministry of Agriculture and Fisheries one copy with the Postmaster-General one copy with the Registrar-General of Births Deaths and Marriages in Scotland one copy with the Commissioners of Inland Revenue and one copy with the Minister of Transport If there be any discrepancy between the boundaries as delineated on the said map and the boundaries as described in the schedule to this Order the said map shall be deemed to be correct and shall prevail.

Deposit of
map of
burgh.

6. Nothing in this Order contained shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain in all respects as if this Order had not been confirmed.

Order not
to affect
election of
members
to serve in
Parliament.

7.—(1) The special lighting drainage and scavenging districts of the County Council so far as situated within the district annexed shall be and are hereby abolished

Abolition
of special
districts.

A.D. 1937. — and to that extent all resolutions of the County Council and all orders and decrees of the sheriff of the county or of any other authority constituting or relating to the said special districts shall be of no force or effect and the County Council shall be relieved by the town council from all obligations in respect of the said special districts so far as situated within the district annexed.

(2) The town council shall not in respect of such special districts be under any obligations nor except by agreement with the County Council exercise any powers in such special districts in so far as these are beyond the burgh.

Other jurisdictions to cease.

8. Subject to the provisions of this Order all jurisdictions rights powers and authorities which previous to the commencement of this Order were exercised or exerciseable by the County Council or other authority within the district annexed or any part thereof shall cease and determine with the exception of such jurisdictions rights powers and authorities (if any) as were then exercised or exerciseable by the County Council or other authority within the existing burgh or any part thereof.

Saving for county councillors and district councillors.

9. Notwithstanding anything contained in the Local Government (Scotland) Act 1929 or this Order any member of the County Council or district council who at the commencement of this Order represents any electoral division situated partly within and partly without the district annexed shall continue to be a member of such County Council or district council as the case may be (unless he resigns) until the next election of county councillors or district councillors after the commencement of this Order.

District annexed to be added to existing ward.

10. The district annexed shall for all purposes be added to the VI Crosshill Ward in the burgh.

Powers of magistrates and town council &c. to apply to extended burgh.

11. The town council the magistrates and the dean of guild court respectively shall have possess and may exercise over the burgh as extended and the inhabitants thereof all the jurisdictions powers rights and authorities which the town council magistrates and dean of guild court respectively of the existing burgh possessed and exercised over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise

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including all powers of imposing levying and recovering rates assessments dues and charges and all rights privileges immunities and obligations enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh as extended.

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12. For the purpose of the Acts in force for the time being relating to the registration of parliamentary and local government voters and the election of town councillors for the respective wards in the burgh as extended the district annexed shall notwithstanding anything in this Order contained be deemed to be and to have always been a part of the burgh and to have been included in the ward specified in the section of this Order of which the marginal note is "District annexed to be added to existing ward" for the making up of the register of voters and the assessor for the burgh under the Valuation Acts and the Representation of the People Act 1918 shall make up the valuation roll and register of voters accordingly for the burgh.

Register of
voters and
valuation
roll.

7 & 8 Geo. 5.
c. 64.

13. Subject to the provisions of this Order all mortifications endowments and trusts however constituted charitable bequests or other grants held or administered by the town council or the magistrates or office-bearers of the existing burgh by themselves or in conjunction with any person or persons body or bodies (but under the liabilities to which the same are legally subject) shall be vested in held and administered by the town council or the magistrates or office-bearers of the burgh as extended or so many of their number to be chosen by the town council for that purpose as are appointed by the deeds or writings under which such mortifications endowments trusts bequests or other grants are constituted together with the other trustees also therein nominated for the purposes and with the rights powers and authorities and subject to all the conditions and provisions under and upon which the same were conveyed granted or settled by the granters or makers of such mortifications endowments trusts bequests or other grants.

Existing
trusts
vested in
magistrates
and town
council.

14. The roads streets sewers bridges foot pavements and footpaths within the district annexed shall so far as the same were vested in the County Council or other

Roads &c.
in district
annexed.

A.D. 1937. — public authority be transferred to and vested in and be managed maintained and repaired by the town council along with and in the same way and manner and to the same extent as the roads streets sewers bridges foot pavements and footpaths within the existing burgh and the County Council or such other authority shall be freed and relieved of the repair and maintenance of all such roads streets sewers bridges foot pavements and footpaths so far as within the district annexed in all time coming :

Provided that notwithstanding anything contained in this subsection the sewer leading from Burnside Road in the county (hereinafter called the " Burnside sewer ") westwards to its junction with the former Rutherglen joint intercepting sewer (now the property of the corporation of Glasgow) at a point to the north of Rodger Drive in the burgh shall remain the property of the County Council but it shall be in the power of the town council to make connections with the said Burnside sewer to serve properties on the route thereof within the burgh so long as the said Burnside sewer is capable of accommodating both such sewage and the sewage from the county area and in respect of such right to connect the town council shall make payment to the County Council of such sum as may be mutually agreed between the County Council and the town council or failing agreement as may be fixed by an arbiter to be appointed by the sheriff of the county provided also that in the event of the Burnside sewer becoming unable to accommodate the sewage from the county area and the properties in the burgh connected therewith and of it becoming necessary to enlarge the said Burnside sewer or to provide an additional sewer between the eastern boundary of the burgh as extended and the point of termination of the said Burnside sewer to the north of Rodger Drive the town council shall contribute towards the cost of such enlargement or of the provision of such additional sewer such sum as may be mutually agreed as aforesaid or as may be settled by arbitration in manner above provided.

Saving rights
in roads foot
pavements
footpaths
sewers and
drains.

15. Nothing in this Order contained with respect to the vesting of roads streets sewers bridges foot pavements and footpaths within the district annexed shall prevent any superiors owners or other persons by whom

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or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between the said parties respectively.

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16. Every rate charge and assessment authorised to be levied and collected by the County Council within the district annexed but which has not been actually imposed previous to the commencement of this Order shall subject to the provisions of the section of this Order of which the marginal note is "Recovery of assessments within district annexed" cease and determine on that date within the district annexed and thereafter all rates charges and assessments leviabie within the existing burgh by the town council shall thenceforth be leviabie on and within the burgh as extended in the same way and manner as they are leviabie on and within the existing burgh and until such time as a valuation roll has been completed by the town council in respect of the district annexed the valuation roll of the county so far as it relates to the district annexed shall be the valuation roll for the purposes of any rate charge or assessment levied by the town council within the district annexed.

Assess-
ments in
district
annexed.

17. Every rate charge or assessment which has been actually imposed by the County Council within the district annexed or any part thereof previous to the commencement of this Order together with all arrears thereof shall continue to be due and payable and may be collected and levied by the County Council and by the same ways and means and under the same restrictions and regulations as if this Order had not been confirmed and shall be received and applied by the County Council to and for the purposes for which the same were authorised to be levied.

Recovery
of assess-
ments
within
district
annexed.

18. The common good including all property heritable or moveable and all moneys revenues and income of every description arising therefrom vested in the town council for behoof of the existing burgh and all other properties heritable or moveable belonging to the town council at the commencement of this Order shall be and are hereby vested in the town council and shall be held and applied by the town council for the behoof

Vesting
property of
burgh in
town
council for
behoof of
burgh as
extended.

A.D. 1937. — and benefit of the burgh as extended as they were previously to the commencement of this Order held and applied for the behoof and benefit of the existing burgh.

Borrowing
powers.

19. The town council in addition to any other powers of borrowing which they now have or may obtain may after the date of the passing of the Act confirming this Order for the purpose (a) of the payment under the provisions of the section of this Order whereof the marginal note is "Financial adjustments with County Council" and for the purpose (b) of paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto borrow such money as may be necessary for those purposes respectively. Provided that any money borrowed under this section for the purpose (a) above mentioned shall be repaid within a period of fifteen years from the date or dates of borrowing the same and that any money borrowed for the purpose (b) above mentioned shall be repaid within five years from the date of the passing of the Act confirming this Order.

Financial
adjust-
ments with
County
Council.
4 & 5 Geo. 5.
c. 74.

52 & 53 Vict.
c. 50.

20. The financial adjustments as between the town council and the County Council or district council consequent upon the inclusion within the boundaries of the burgh of the district annexed shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section 50 of the Local Government (Scotland) Act 1889 shall apply and have effect on the extension of the boundaries of the existing burgh by this Order and any dispute or difference arising in connection with such adjustments shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the town council or the County Council or district council.

Transfer of
property
and
liabilities.

21.—(1) Subject to the provisions of this Order and except as otherwise in this Order expressly provided the lands buildings depots lamps lamp-posts pipes mains cables wires apparatus plant and all other property assets and powers of every description vested in held by or due or belonging to the County Council district council or other authorities in the district annexed are by virtue of this Order and without the necessity of

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recording in the register of sasines any conveyance notarial instrument notice of title or other deed or writing transferred to and vested in and shall be held by and be due and belong to the town council and shall form part of the property and assets of the town council for all the estate and interest therein of the County Council the district council or such authorities and shall be received held and enjoyed by the town council accordingly. A.D. 1937.

(2) All the powers duties liabilities contracts and agreements of the County Council the district council or such authorities in relation to the district annexed are by virtue of this Order transferred and shall attach to the town council and shall form part of the powers duties liabilities contracts and agreements of the town council and be enjoyed performed paid and discharged by them.

(3) For the purpose of enabling the town council to complete a title if thought fit to any part of the lands buildings and other heritable property transferred to and vested in them by virtue of this Order by expediting a notarial instrument notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such lands buildings and other property in favour of the town council.

(4) The town council shall determine any question which shall arise as to the department of the town council to which any part of such property ought to belong and any question as to the fund of the town council out of which such liabilities and obligations shall be defrayed.

(5) Nothing in this section contained shall be deemed to transfer to or vest in the town council any works belonging to or any powers of any authorised undertakers (as defined in the Electricity (Supply) Acts 1882 to 1936) in the district annexed.

(6) Section 2 (Purchase of undertaking by local authority) of the Electric Lighting Act 1888 shall not unless otherwise agreed in writing between the County Council and the town council apply to the part of the undertaking of the County Council authorised by the Lanarkshire (Western Area) Electricity Special Order 1923 and included in the district annexed. 51 & 52 Vict. c. 12.

A.D. 1937.

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As to water
undertaking
of County
Council.

22. The undertaking of the County Council authorised by the Lanarkshire Water Acts 1892 to 1935 in so far as the water limits within which the County Council is by the said Acts authorised and required to supply water is included in the district annexed shall notwithstanding anything contained in the section of this Order of which the marginal note is "Transfer of property and liabilities" continue vested in the County Council.

Applica-
tion of
general
and local
Acts.

23.—(1) Except so far as inconsistent with or varied by this Order all public and general and local and personal Acts and Orders relating to and in force in the existing burgh and all byelaws rules regulations and orders made thereunder shall subject to the provisions of this Order be exercised over and be applicable to the burgh as extended.

(2) Notwithstanding anything in this section contained the byelaws and regulations which shall be made to affect the district annexed in regard to the construction occupation use cleansing or sanitation of or any other matter affecting any dwelling-houses cottar houses cow-byres dairy premises and sculleries milk-houses piggeries dungsteads and other buildings and erections thereon or any renewals extensions or enlargements thereof shall not during the period of five years after the commencement of this Order be made in terms more onerous on owners or tenants than the byelaws and regulations in regard to such matters in force at the time in the district of the county of which the district annexed forms part prior to the commencement of this Order.

(3) Nothing in this Order shall alter the area of supply defined by the Rutherglen Electric Supply Orders 1905 and 1908 or by any other Electricity Act or Order.

Variation
of procedure
under
Temperance
(Scotland)
Act 1913.
3 & 4 Geo. 5.
c. 33.

24. The Secretary of State may in order to meet the circumstances arising from the extension of the boundaries of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure.

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25.—(1) Every person whose settlement is derived from birth or residence for the statutory period of three years in the district annexed shall be deemed to have a settlement within the burgh.

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—
Poor law
settlement.

(2) Every person who at the commencement of this Order is resident in the district annexed and is in course of acquiring a settlement in the county by reason of such residence shall for the purposes of his settlement be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Order resided within the district annexed.

(3) Where at the commencement of this Order a person has a settlement within the county by reason of residence partly in the district annexed and partly in another part of the county the burgh or the county as the case may be shall be deemed to be the area of settlement of that person according as the place of his residence at the time of his acquiring a settlement was within the district annexed or within another part of the county.

(4) For the purposes of section 4 of the Poor Law (Scotland) Act 1898 and subsection (3) of section 3 of the Poor Law (Scotland) Act 1934 every person who at the commencement of this Order is resident in the district annexed shall be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Order resided within the district annexed or within any part of the county.

61 & 62 Vict.
c. 21.

24 & 25
Geo. 5. c. 52.

26. The several officers of or appointed by the town council shall have possess and may exercise in their several characters and capacities the same powers rights and authorities in and over the burgh as extended as they have possess and may exercise in their several characters and capacities within the existing burgh and that whether at common law or by statute.

Officers of
existing
burgh.

27. Nothing in this Order shall operate to alter diminish or extend the royalty boundaries of the royal burgh of Rutherglen as existing at the commencement of this Order nor the powers rights or privileges vested in the town council within such boundaries by virtue of any royal charter or other instrument constituting or conferring privileges on the said royal burgh or to subject the inhabitants of or any lands or heritages within any part of the district annexed outwith such

Royalty
not to be
affected &c.

A.D. 1937. — boundaries to any dues or payments exigible by the town council under any such charter or instrument nor shall anything herein contained alter or affect the holding or tenure of any land or heritages within the district annexed or the records wherein the rights thereof or any deed or writing affecting the same are by law required to be registered.

Insurance
committees.

28. The powers of the Department of Health for Scotland (hereinafter in this section referred to as "the department") shall operate for the purpose of reconstituting by order made by the department the insurance committees for the county and for the burgh as from the commencement of this Order or such subsequent date as shall be determined by the department and that in such manner and to such extent (if any) as the department may deem necessary in consequence of the provisions of this Order and for the adjustment consequent on the said provisions of the boundaries of the areas and the financial rights and obligations of the said committees and any such order made by the department may contain such incidental supplemental and consequential provisions as may appear to the department necessary or expedient for carrying the order made by them into effect and for adapting thereto the provisions of the National Health Insurance Acts 1936 and 1937. Provided that any order so made shall be laid before both Houses of Parliament as soon as may be after it is made.

26 Geo. 5. &
1 Edw. 8.
c. 32.
1 Edw. 8. &
1 Geo. 6. c. 24.

Crown
rights.

29. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree.

Costs of
Order.

30. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the town council out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys borrowed by them under this Order for that purpose.

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The SCHEDULE referred to in the foregoing Order. A.D. 1937.

Commencing at a point " A " on the south side of the London Midland and Scottish Railway (Lanarkshire and Ayrshire section) and the south side of Croftfoot station about 110 feet from the centre of the island platform thereof at the westmost end of the station building forming the termination of an old thorn hedge and extension thereof defining the line of the boundary dividing the city of Glasgow and the county of Lanark as it extends north-north-westward from the south side of Croftfoot Road for a distance of about 2,272 feet Thence running in an east-south-easterly direction crossing the burn and the burgh of Rutherglen royalty boundary and following the bends on the line of the London Midland and Scottish Railway fences past Spittal Farm for a distance of about 2,860 feet till it reaches the west side of Mill Street at the point where the said railway crosses over the roadway Thence turning northwards under the railway bridge along the west side of Mill Street for a distance of about 97 feet till it reaches the range of the Rutherglen Burgh boundary skirting the said railway on its north side Thence turning and running in an east-south-easterly and easterly direction crossing Mill Street and continuing along the Rutherglen Burgh boundary and following its course along the north side of the said railway till it reaches the west side of Broomieknowe Road where the said railway crosses under the roadway and continuing crosses Broomieknowe Road till it reaches the east side of the said road at a point at the south-west corner of Blairtum Drive at its junction with Broomieknowe Road at a point about 60 feet from the south-east corner of the Lodge at the entrance to Blairtum Park Thence turning in a southerly direction along the line of the east parapet wall of the Bridge for a distance of about 125 feet till it reaches Blairbeth Road Thence turning in an easterly direction along the northmost side of that road for a distance of about 240 feet Thence turning and crossing Blairbeth Road in a southerly direction till it reaches the Policy ground of Blairbeth House along which together it extends about 150 feet on the westmost face of a boundary wall and range thereof Thence turning in an easterly direction for a distance of about 10 feet on the southmost face of a boundary wall Thence again in a southerly direction for a length of about 305 feet on the line of a boundary fence Thence turning in a south-easterly direction for a distance of about

A.D. 1937. 240 feet along the line of a boundary fence Thence in a westerly direction for a distance of about 12 feet on the line of a boundary fence Thence again in a southerly direction for a distance of about 18 feet on the line of a boundary fence Thence in an easterly direction for a distance of about 14 feet on the line of a boundary fence Thence again in a southerly direction for a distance of about 120 feet on the line of a boundary fence Thence turning in a west-south-westerly direction and following the curves for a distance of about 115 feet along the line of a boundary fence and hedge Thence turning in a south-south-easterly direction and following the curve for a distance of about 240 feet on the line of a boundary fence till it reaches a point on the north side of the extended portion of Golf Road about 596 feet from the south-east corner of Blairbeth House Thence crossing the extended portion of Golf Road and continuing round the bend in a south-south-westerly direction for about 140 feet on the line of a boundary fence Thence turning in a westerly direction for a distance of about 15 feet on the line of a boundary fence Thence turning again in a south-south-westerly direction along the line of a boundary fence crossing the extended portion of Elm Road and continuing partly on the line of boundary fences and the outer face of a wall for a distance of about 360 feet Thence in a southerly direction for a distance of about 257 feet till it joins the end of an existing fence at the burgh of Rutherglen royalty boundary at the centre of a burn at a point about 1,210 feet from the south-east corner of Blairbeth House Thence turning in an easterly direction following the said royalty boundary along the course of the burn for a distance of about 650 feet to a point about 55 feet from the north-east corner of the golf club house there Thence in a southerly direction on the line of an old thorn hedge and extensions thereof for a distance of about 1,225 feet Thence turning in a westerly direction towards Cathkin Mill Cottage following along the line of a fence and hedges and crossing the road continuing from Mill Street and leading southwards towards Cathkin Braes Park for a distance of about 1,428 feet to a point on the west side of that road about 50 feet from the north-east corner of Cathkin Mill Cottage thence turning in a northerly direction along the west side of the said road continuing from Mill Street and leading southward towards Cathkin Braes Park following the curves and passing Bowhouse Farm house on the line of a wall bounding the Castlemilk Policies and extending over Croftfoot Road to the north side thereof for a distance of about 3,148 feet to a point at the junction of Croftfoot Road and Mill Street thence turning in a west and south-westerly direction along the north side of Croftfoot Road for a distance of about 2,516 feet until it reaches the boundary line dividing the city of Glasgow and the county of Lanark at a point about 590 feet westward from the north-west corner of

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Croftfoot Farm house thence turning and running in a north-north-westerly direction and following the line of the old thorn hedge defining the line of the said city of Glasgow and county of Lanark boundary for a distance of about 2,240 feet where it reaches the point "A" on the south side of the London Midland and Scottish Railway (Lanarkshire and Ayrshire section) on the south side of Croftfoot station where the foregoing description began. A.D. 1937. —

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FOR

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